

Smt. Neelam Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 May 2010 · Writ-C No. 14449 of 2010 · **Mandamus for commercial connection refused; petitioners relegated to a clause 4.4 application.**

HEADNOTE

Tenants who sought a commercial electricity connection in their own names, opposed for want of a landlord no-objection certificate, were refused a writ of mandamus. The Court held that no direction as prayed could issue, and observed that if the petitioners applied under para 4.4 of the U.P. Electricity Supply Code, 2005 read with Annexure 4.2, the licensee was to act in accordance with law.

FACTUAL SUMMARY

The petitioners, claiming to be tenants of a shop, sought a mandamus for a commercial electricity connection in their names. The distribution licensee opposed the prayer for want of a landlord no-objection certificate, and said the proper course was an application under para 4.4 of the U.P. Electricity Supply Code, 2005 read with Annexure 4.2. At an earlier listing the petitioners had filed a landlord-tenant agreement in which the landlord admitted liability to pay electricity charges.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier connection without owner NOC

HOLDING

Where tenants sought a writ of mandamus for a commercial connection in their names and the licensee objected that no landlord no-objection certificate had been produced, the Court declined the mandamus and relegated the petitioners to an application under para 4.4 of the U.P. Electricity Supply Code, 2005 read with Annexure 4.2, to be acted upon in accordance with law. ¶ 3

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Tenants who sought a commercial electricity connection in their own names, opposed for want of a landlord no-objection certificate, were refused a writ of mandamus. The Court held that no direction as prayed could issue, and observed that if the petitioners applied under para 4.4 of the U.P.. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS AS TENANTS WERE ENTITLED TO A CONNECTION WITHOUT A LANDLORD NOC, OR WHETHER AN INDEMNITY APPLICATION UNDER CLAUSE 4.4 WOULD SUCCEED ON THESE FACTS

The Court issued no merits direction and left the licensee to act on a para 4.4/Annexure 4.2 application in accordance with law. ¶ 3

NOT DECIDED — TENANCY OR OTHER RIGHTS IN THE SHOP, AND CONSTRUCTION OF THE LANDLORD-TENANT AGREEMENT ON ELECTRICITY CHARGES

The 4 May 2010 order declined to comment on property rights and left interpretation of the agreement to the corporation. ¶ 2

